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Land Related Act, 2021

Royal Seal and Date of Publication

2021.8.1

Amending Acts

1. Land Related (First Amendment) Act, 2022 2022.12.10
2. Land Related (Second Amendment) Act, 2025 2025.7.9
3. Land Related (Third Amendment) Act, 2038 2038.4.25
4. Judicial Administration Reform (Fourth Amendment) Act, 2043 2043.7.24
5. Judicial Administration Act, 2048 2048.2.16
6. Land Related (Fourth Amendment) Act, 2053 2053.9.24
7. Act to Amend Some Nepal Acts, 2055 2055.10.7
8. Land Related (Fifth Amendment) Act, 2058 2058.10.25

Ratification and Publication Date

9. Act to Amend Some Nepal Acts to Ensure Gender Equality, 2063 2063.7.17
10. Republic Strengthening and Some Nepal Laws (Amendment) Act, 2066 2066.1.7
11. Land Related (Sixth Amendment) Act, 2072 2072.6.14
12. Act to Amend Some Nepal Acts, 2072 2072.11.13
13. Land Related (Seventh Amendment) Act, 2075 2075.6.2
14. Land Use Act, 2076 2076.05.06
15. Land Related (Eighth Amendment) Act, 2076 2076.10.28
16. Act to Amend Some Nepal Acts Related to Investment Facilitation, 2081 2081.03.24

Act No. 25 of the year 2021

An Act Made to Amend and Consolidate the Land Related Act

Preamble: Whereas, it is desirable to bring rapid momentum to the economic development of the country by channeling idle capital and population burden from land into other sectors of the economy;

Whereas, it is desirable to bring improvement in the living standard of real farmers dependent on land through equitable distribution of agricultural land and making necessary agricultural knowledge and means accessible;

Whereas, it is desirable to provide encouragement for maximum increase in agricultural production and to maintain the convenience and economic interest of the general public;

This Act is made by His Majesty King Mahendra Bir Bikram Shah Dev with the advice and consent of the National Panchayat. Chapter-1

Preliminary

1. Short Title, Extent, and Commencement: (1) This Act may be called the "Land Related Act, 2021".

(2) Chapters 1, 7, 8, 10, and 11 shall come into force immediately throughout Nepal Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. and other Chapters, Sections, or Sub-sections shall come into force from the date specified in the area specified by the Government of Nepal by publishing a notice in the Nepal Gazette from time to time. 2.

Definitions: Unless the subject or context otherwise requires, in this Act,- (a) "Landowner" means a person who has land registered in their name liable for payment of land revenue to the Government of Nepal according to prevailing Nepal law and who has a right over the land by virtue of such registration, and the said term also denotes the following persons in relation to the following land: (1) In relation to Birta land abolished under the Birta Abolition Act, 2016, the person to be registered as the landowner, (2) In relation to Jimidari Sath land, the Jimidar, (3) Added by the Second Amendment.(2k) In relation to Kipat, the person who cultivates such land by paying government revenue according to established custom, or the person who cultivates such land by paying revenue to such person, (3) A successor-in-interest or co-parcener of such landowner, or a person who has acquired the right to get such land registered in their own name because such landowner has relinquished their right according to law, (4) If the land of such landowner is in Bhog (usufructuary mortgage) or Drishti (possessory) mortgage with someone else who has been using and cultivating it according to law, such person as long as they continue to use and cultivate it. (b) "Tenant (Mohi)" means a farmer who is allowed to cultivate the land of another landowner under some condition and who cultivates it with their own or their family's labor. (c) In relation to any person, "Family" means such person and the following relatives of theirs up to: (1) Husband or wife, whether separated in partition or not, (2) Sons, Added by the Act to Amend Some Nepal Acts to Ensure Gender Equality, 2063.daughters under the age of 16 years, whether separated in partition or not, so long as the father or mother is alive. (3) Removed by the Act to Amend Some Nepal Acts to Ensure Gender Equality, 2063. (d) "Rent/Crop Share (Kut)" means the cash or kind or both paid by the tenant to the landowner in return for taking the land for cultivation. (e) "Homestead (Ghar Bari)" means the house where people reside and the land occupied by that house, and the said term also includes land attached to or separate from the house used for cowshed, granary, well, pond, garage, stable, fruit orchard, vegetable garden, bamboo grove, thatch grass field, place for sports or recreation, or any other similar purpose. (f) In relation to any land, "Main Annual Yield" means the yield of the crop among those grown on that land during the year that gives the most profit. (g) "Farmer (Kisan)" means a person engaged in agriculture.

Added by the Second Amendment.Provided that, for the purpose of determining debt under Chapter 9, the said term means a person who cultivates land with their own or their family's labor.

(h) "Jimidari System" means the system including Kipat management and the collection and realization of land revenue according to law by appointing agents called Jimidar, Patwari, Talukdar, Jimmawal, Mukhiya, Thari, Dware or by any other name, and depositing it with the Government of Nepal Amended by the Second Amendment..

(i) "Land Revenue (Malpot)" means the land revenue and any other similar dues payable by the landowner to the Government of Nepal according to prevailing Nepal law. Added by the Eighth Amendment.(i1) "Ministry" means the Ministry of the Government of Nepal looking after matters related to land management. Added by the Eighth Amendment.(i2) "Department" means the Department of Land Management and Archives. Added by the Eighth Amendment.(i3) "Office" means the office designated by the Ministry to perform work related to

land management. Added by the Eighth Amendment.(i4) "Land Reform Officer" means the chief of the Office. Added by the Eighth Amendment.(i5) "Public Entity" means any of the following entities:

- (1) A company, bank, or committee wholly or partly owned or controlled by the Government of Nepal, Provincial Government, or Local Level, or a commission, corporation, authority, company, foundation, board, center, council, and other organized institutions of a similar nature established under prevailing law,
- (2) A university, college, technical and vocational school, school, research center, and other similar academic, educational, or health institutions operated by the Government of Nepal, Provincial Government, or Local Level, or receiving full or partial grants from the Government of Nepal,
- (3) An institution operating on loans, grants, or guarantees from the Government of Nepal or Provincial Government,
- (4) An institution wholly or partly owned or controlled by the entities referred to in Sub-clauses (1), (2), or (3),
- (5) Other institutions designated as Public Entities by the Government of Nepal by publishing a notice in the Nepal Gazette. Added by the Eighth Amendment.(i6) "Industry" means an institution registered as an industry under prevailing law. Added by the Eighth Amendment.(i7) "Establishment (Pratishthan)" means industries, teaching institutions, health institutions, and cooperative institutions registered under prevailing law. Added by the Eighth Amendment.(i8) "Company" means a company registered under prevailing company law. Added by the Eighth Amendment.(i9) "Project" means any development project operated by the government, semi-government, private sector, or a company for a specified period.

(j) "Notified Order" means an order published by the Government of Nepal in the Nepal Gazette.

(k) "Prescribed" or "as prescribed" means as prescribed in the Rules or Notified Orders under this Act.
Chapter - 2

Abolition of Jimidari

3.

Abolition of Jimidari: Jimidari is abolished. As a result of such abolition, all rights and powers of agents related to Jimidari in the concerned Mauja shall be deemed to have automatically terminated. Provided that, in the case of land associated with Jimidari (Jimidari Sath), such land shall be registered in the name of the concerned Jimidar in the revenue records (Nambari) in the capacity of landowner. Added by the Second Amendment.3k. Provision Relating to Kipat: (1) Kipat land shall be transferable Amended by the Act to Amend Some Nepal Acts, 2072 through sale deed (Rajinama) similar to Raikar land. (2) Land revenue shall be assessed on Kipat land similar to Raikar land. 4. Documents Relating to Jimidari: (1) The person entrusted with the documents of Jimidari shall, when ordered by the prescribed office or officer, submit such documents to them. (2) If documents are not submitted as per Sub-section (1), such office or officer, when needing to refer to those documents for work relating to land, shall have them shown by the said person and, after the work is completed, return them to be kept safe in their custody. 5. Interim Arrangement for Collection and Realization of Land Revenue: Until the Government of Nepal makes other arrangements for the collection and realization of land revenue of the Jimidari abolished under Section 3, it may have the collection and realization work done by the person who had the duty to collect and realize land revenue before the abolition of Jimidari, or any other prescribed person, or Amended by the Act to Amend Some Nepal Acts, 2072 the Rural Municipality or Municipality, under prescribed conditions. 6. Punishment: (1) If anyone fails to perform the duty required to be performed under Section 4, the prescribed office or officer may impose a fine of up to Rs. 500.- (five hundred) or imprisonment for up to three months, or both, and take such documents into their possession. (2) If the person having the duty to collect and realize land revenue under Section 5 fails to collect and realize it according to law or fails to perform any other duty related thereto, the prescribed office or

officer may recover from the house/property of such person the loss or damage caused to the Government of Nepal thereby, and may impose a fine of up to Rs. 1,000.- (one thousand) or imprisonment for up to six months, or both. Repealed by the Judicial Administration Reform (Fourth Amendment) Act, 2043.(3) Chapter-3 Land Ceiling 7.

Maximum Limit of Land that may be Held in the Capacity of Landowner: Amended by the Fifth Amendment.(1) No person or their family may, in the capacity of landowner, hold land in Nepal Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. exceeding a total of 10 Bighas, subject to the following limits in the following areas:- (a) In the entire Terai region including Inner Terai - 10 Bighas. (b) In Kathmandu Valley - 25 Ropani. (c) In the entire Hill region excluding Kathmandu Valley - 70 Ropani. Amended by the Fifth Amendment.(2) Notwithstanding anything contained in Sub-section (1), any person or their family may hold additional land, not exceeding the limits specified below, as may be necessary for the purpose of homestead, in addition to the land mentioned in Sub-section (1):- (a) In the entire Terai region including Inner Terai - 1 Bigha. (b) In Kathmandu Valley - 5 Ropani. (c) In the entire Hill region excluding Kathmandu Valley - 5 Ropani. Added by the First Amendment and effective from the date of commencement of the original Act.(3) In relation to any land in the areas where Sub-sections (1) and (2) apply, if, before the commencement of said Sub-sections, a deed of relinquishment of right (by way of sale, gift, exchange, or any other manner) was made by any landowner in favor of any person other than a successor-in-interest or co-parcener entitled to a share under the prevailing Nepal law, and such deed has not been registered by the date of commencement of said Sub-sections, and if, when such relinquished land is added to the other land remaining with such person or their family, it exceeds the maximum limit specified in Sub-sections (1) and (2), then such transaction of relinquishment shall not be recognized for the purposes of this Section, and this Section shall apply as if such land remained with the landowner who relinquished it. Provided that this Sub-section shall not apply where a claim has already been made by applying for registration before the application of this Section.

Added by the First Amendment and effective from the date of commencement of the original Act.(4) In the areas where Sub-sections (1) and (2) apply, if, after the commencement of said Sub-sections, a landowner who holds land exceeding the maximum limit specified in said Sub-sections in their own name or their family's name makes a deed of relinquishment of right (by way of sale, gift, exchange, or any other manner) in favor of any person other than a successor-in-interest or co-parcener entitled to a share under Nepal law, then, regardless of whether the deed of such transaction is registered or not, such transaction shall not be recognized for the purposes of this Section, and this Section shall apply as if such land remained with the landowner who relinquished it. Provided that this Sub-section shall not apply in relation to a gift made by anyone for the purpose of a public educational institution. Added by the First Amendment and effective from the date of commencement of the original Act.(5) For the purposes of Sub-section (1), in the case of land tenanted by a tenant, the share of the landowner and the tenant shall each be calculated as half. Added by the Fifth Amendment.(6) Notwithstanding anything contained elsewhere in this Section, in respect of a landowner whose ceiling-related proceedings were pending decision until the date of commencement of this Section, the maximum limit under this Section shall apply only after the proceedings relating to the land ceiling under the previous provision are concluded. Added by the Eighth Amendment.(7) The Office shall keep a freeze (Rokka) on land in excess of the ceiling under Section 13 until the investigation of the ceiling is finalized. Added by the Eighth Amendment.(8) Notwithstanding anything contained in Sub-section (7), even if the investigation of the land ceiling is not finalized, a tenant shall not be prevented from taking their share through partition under this Act. 8. Removed by the Eighth Amendment 9.

Provision Relating to Land Held in Another's Name: (1) If any person or their family, intending to cultivate it themselves, executes a registration deed in another person's name, or relinquishes their right by any other means, or acquires land in another person's name by any means, and directly or indirectly cultivates such land themselves, then Section 7 shall apply considering such land also as remaining with them. (2) If a landowner submits the statement (Phantwari) required under Section 13 concerning land under Sub-section (1) within the period prescribed under that Section, such land shall be recorded in their name and action shall be taken under this Act. (3) If, concerning land under Sub-section (1), a landowner fails to submit the statement required under Section 13 within the period prescribed under that Section, and the registered owner of that land submits details under Section 13 showing that, although the land is registered in their name, the real landowner is a different person, then all rights of that real landowner over such land shall terminate, and action under this Act shall be taken confirming the right of the registered owner over it. Amended by the Second Amendment.(4) If details are not submitted by the landowner under Sub-section (2) or by the registered owner under Sub-section (3), and the matter comes to light from any other person, then Amended by the Sixth Amendment. such land shall be confiscated by order of the prescribed authority and such land shall come under the ownership of the Government of Nepal. Added by the Second Amendment and repealed by the Judicial Administration Reform (Fourth Amendment) Act, 2043.(5) Amended by the Sixth Amendment.(6) If the decision made by the prescribed authority for confiscation of land under Sub-section (4) becomes final, the prescribed authority shall give an amount equivalent to twenty-five percent of the value of the confiscated land calculated at the prescribed rate as a reward to the person who provided the information under that Sub-section. 10.

Prohibition on Acquiring Land: (1) Except by way of partition or inheritance, no one shall, in the capacity of landowner, acquire any land in any manner in their own name or in the name of anyone else that would cause the maximum limit specified in Section 7 to be exceeded. (2) If anyone comes to get a deed registered for taking land in any manner, the deed of such transaction shall not be registered unless the person taking the land submits to the registering authority a statement in writing stating the total area of land currently held in Nepal in the capacity of landowner under their own name or under anyone else's name. (3) If, from the statement submitted under Sub-section (2), it appears that the land taken or sought to be taken would contravene Sub-section (1), the registering office shall not register the deed of such transaction. 11. Punishment: (1) Removed by the Eighth Amendment (2) If anyone acquires land in contravention of Section 10, they shall be liable to a fine of up to Rs. 1000/- (one thousand)Amended by the Second Amendment. by order of the prescribed authority, and from the land so acquired, the portion exceeding the limit they may hold under Section 7 shall be confiscated. Added by the Second Amendment and repealed by the Judicial Administration Reform (Fourth Amendment) Act, 2043.(3) 12.

Exemptions from Maximum Ceiling: Notwithstanding anything contained in Sections 7 and 10, the provisions of those Sections shall not apply to the following land:- (a) Land in the use and occupation of the Government of Nepal, Amended by the Eighth Amendment.(b) Land in the use and occupation of the Provincial Government and Local Level, Added by the Eighth Amendment.(b1) Land used, occupied, or acquired by Public Entities wholly owned by the Government of Nepal, Added by the Eighth Amendment.(b2) Land purchased by Public Entities, Industries, Establishments, Companies, or Projects, subject to the limits specified in the Notified Order issued by the Government of Nepal. (c) Land in the use and occupation of teaching or health institutions specified by the Government of Nepal by a Notified Order, up to the limit specified in that Order, as long as it remains used for the work of such institution, (d) Land used for industrial work specified by the Government of Nepal by a Notified Order, according to the conditions specified, up to the limit specified in that Order, as long as it remains used for such work, (e) Land used for agricultural

industry work specified by the Government of Nepal by a Notified Order, according to the conditions specified, up to the limit specified in that Order, as long as it remains used for such work according to such conditions, Added by the Eighth Amendment.(e1) Land, up to the limit specified in the Notified Order issued by the Government of Nepal, for a company that has obtained permission from the concerned body, for the purpose of conducting real estate business in the residential sector, subject to the conditions specified in that Order, (f) Amended by the Fourth Amendment.Land under the authority of the Guthi Corporation as per the Guthi Corporation Act, 2033, (g) Land registered in the name of a cooperative farming institution specified by the Government of Nepal by a Notified Order, up to the limit specified in that Order, as long as it remains used for the work of such institution, and (h) Land acquired by a foreign institution entitled to diplomatic facilities or a foreign state with the approval of the Government of Nepal, as long as it remains used for the work of such institution or state, Added by the Act to Amend Some Nepal Acts Related to Investment Facilitation, 2081.12k.

Special Provision Relating to Regulating Ceiling Exemption: (1) If any industry, establishment, company, or institution that is in continuous operation at the time of commencement of this Section has purchased and is using land exceeding the ceiling limit specified in this Act, which is absolutely necessary for operating such industry, establishment, company, or institution, without obtaining the approval of the Government of Nepal, it may submit an application to the Government of Nepal within three months from the date of commencement of this Section, stating the reasons justifying the necessity of the excess land, only once. Added by the Act to Amend Some Nepal Acts Related to Investment Facilitation, 2081.(1k) Any industry, establishment, company, or institution that was unable to submit an application under Sub-section (1) may submit an application for approval to the Government of Nepal through the Ministry within six months from the date of commencement of this Sub-section, stating the reasons justifying the necessity of the excess land.

(2) Amended by the Act to Amend Some Nepal Acts Related to Investment Facilitation, 2081.Upon receiving applications under Sub-section (1) or (1k), after making necessary inquiries, if the matter appears reasonable, the Government of Nepal may, within the prescribed period, grant approval to hold land within the ceiling limit prescribed by the Notified Order issued under this Act, upon levying a fee at the rate of one hundred fifty thousand rupees per Bigha for the Terai and Inner Terai, fifty thousand rupees per Ropani for Kathmandu Valley, and ten thousand rupees per Ropani for other Hill regions. While granting such approval, the Government of Nepal may prescribe necessary conditions.

(3) Notwithstanding anything contained elsewhere in this Section, the Government of Nepal shall not grant approval to hold excess land to an industry, establishment, company, or institution that is not in operation or is not in a position to be operational due to financial, technical, or other reasons. Added by the Act to Amend Some Nepal Acts Related to Investment Facilitation, 2081.(4) If any industry, establishment, company, or institution holds land exceeding the ceiling limit under Section 12 or this Section, the Department and the Office shall prepare and maintain records of the land within and in excess of the ceiling limit of such industry, establishment, company, or institution. Added by the Eighth Amendment.12kh. Must Use: Any industry, establishment, company, project, teaching institution, or any other institution that has acquired land exceeding the ceiling limit under a Notified Order issued under this Act must use such land only for the purpose for which it was acquired, according to the conditions specified in that Order. Added by the Eighth Amendment.12g.

Prohibition on Sale, Distribution, or Exchange: Any industry, establishment, company, project, teaching institution, or any other institution that has purchased land under a Notified Order issued under this Act shall not sell, distribute, transfer rights in any manner, or exchange such land to anyone. Provided that, (1) If such

industry, establishment, company, or institution is to be dissolved for any reason or goes into liquidation, it shall not be deemed to be prevented from selling or distributing such land subject to this Act and with the approval of the Government of Nepal for the purpose of settling the liabilities of such industry, establishment, company, or institution. (2) If a reasonable and sufficient cause is shown in an application for the necessity to relocate or exchange an agricultural farm, industry, establishment, company, or institution established on land within the ceiling limit specified by the Notified Order of the Government of Nepal, and the application appears reasonable, the Government of Nepal may, subject to this Act and the conditions stipulated by it, grant approval for the exchange or relocation of the land used and occupied by such agricultural farm, industry, establishment, company, or institution to another place. Added by the Act to Amend Some Nepal Acts Related to Investment Facilitation, 2081.(3) If an entity that has obtained permission to purchase land exceeding the ceiling limit under a Notified Order issued by the Government of Nepal, such as a public entity, industry, establishment, company, project, teaching institution, or any other institution, can continue its operation without reducing employment and production, it shall not be prevented from selling or distributing, once, with the approval of the Ministry and subject to conditions set by the Ministry, land within the ceiling limit under Section 7 purchased for the purpose of settling debts and paying liabilities of banks and financial institutions. Provided that, due to the sale of such land within the ceiling limit, the land that was in excess of the ceiling limit before the sale shall not be deemed to have come within the limit under Section 7. Added by the Eighth Amendment.12gh. Prohibition on Leasing or Renting: Land purchased under a Notified Order issued under this Act shall not be leased or rented to anyone else. Added by the Eighth Amendment.12ng.

Monitoring and Inspection Committee: (1) There shall be a Monitoring and Inspection Committee in each district as follows to monitor and inspect whether the industries, establishments, companies, projects, teaching institutions, or any other institutions that have obtained approval to purchase or hold land exceeding the ceiling limit under Section 12 are performing their work in accordance with their objective:- (a) Chief of the District Coordination Committee - Coordinator (b) Chief or Chairperson of the Local Level where the excess land is located - Member (c) Officer representative of the District Administration Office - Member (d) Chief of the Treasury and Comptroller Office - Member (e) Chief of the Survey Office - Member (f) Chief of the office regulating the concerned industry, establishment, project, or company - Member (g) Chief of the Office - Member-Secretary (2) The Committee under Sub-section (1) shall, within two months from the end of the fiscal year, conduct on-site monitoring and inspection, in consultation with the concerned Local Level as well, regarding whether the agricultural farms, industries, establishments, or companies that have obtained approval to purchase or hold land exceeding the ceiling limit have used it in accordance with the objective at the time of obtaining approval. (3) While monitoring and inspecting under Sub-section (2), a report shall be submitted to the Department regarding whether such land has been used in accordance with the objective at the time of acquiring the excess land, and a copy of the same shall also be given to the concerned Local Level. (4) The Department shall study the report received under Sub-section (3) and submit it to the Ministry with its opinion within one month. (5) If it is found from the report submitted under Sub-section (4) that the land exceeding the ceiling limit has not been used according to the objective, the Ministry shall confiscate such land and record it in the name of the Government of Nepal. Added by the Act to Amend Some Nepal Acts Related to Investment Facilitation, 2081.12ch. Must Sell Land Taken Over: If, during the auction sale of land mortgaged as loan security by a bank, financial institution, or cooperative organization, no one accepts the auction and the concerned bank, financial institution, or cooperative organization itself takes over such land, and this results in exceeding the ceiling limit, such land must be sold within three years from the date of taking over.

If it is not sold within that period, the approval of the Government of Nepal must be obtained to sell such land.

Added by the Act to Amend Some Nepal Acts Related to Investment Facilitation, 2081.12chh. Must Get Approved: Before obtaining permission to hold land exceeding the ceiling limit, a public entity, industry, company, establishment, educational institution, project, or organization must prepare a Detailed Project Report (DPR) and Environmental Study Report relating to land use and get them approved from the concerned body. Chapter-4

Acquisition of Land Exceeding Maximum Ceiling

13. Submission of Land Statement: (1) The prescribed authority may issue notice as prescribed and Amended by the Sixth Amendment. order landowners who have land exceeding the maximum ceiling to submit, or cause to be submitted, the prescribed statement (Phantwari) within 35 days from the date of issuance of such notice. Amended by the First Amendment. Provided -

(a) If, upon the application of the concerned person or for any other reasonable cause, it appears necessary to extend the deadline, the prescribed authority may grant an additional period of up to 35 days from the expiry of the said deadline.

(b) If a government employee or a person who has gone abroad was unable to submit the statement within the deadline, and such person applies for an extension, the Government of Nepal or the prescribed authority may grant an additional period if deemed necessary.

(c) Removed by the Sixth Amendment

Added by the Fifth Amendment.(1k) While submitting the statement under Sub-section (1), the landowner must, in the capacity of landowner or tenant, disclose details of all land held in their own name or their family's name in Nepal Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 in a single statement and submit it in only one district where their land is located.

(2) Amended by the Second Amendment.It shall be the duty of every landowner to submit, or cause to be submitted, the statement under Sub-sections (1) and (1k). Such statement shall be submitted by the head of the family in the case of a family, and by the guardian or legal representative in the case of a minor or a landowner of unsound mind.

Added by the Second Amendment.(2k) In the case of Bhog or Drishti mortgage land, if only one of the parties, the creditor (Sahu) or the debtor (Asami), submits the statement, it shall be deemed that the statement has been submitted concerning such land for the purposes of this Section. (3) A landowner who holds land exceeding the maximum ceiling limit under Section 7 in one or more areas shall, while submitting the statement under this Section, also specify in that statement which land they wish to retain and which land they wish to surrender. Amended by the Second Amendment.14. Preparation of Statement: (1) Based on the statements submitted under Section 13 and information received from other sources, the prescribed authority, if it finds any error to be corrected, shall prepare the final statement after making such corrections as well. Provided that, before correcting anything in a statement given by anyone under Section 13, the prescribed authority shall give a period of at least fifteen days to the concerned person to provide an explanation along with evidence, and the prescribed authority may correct the statement only after investigating the evidence submitted by that person. If the statement is corrected accordingly, notice thereof shall be given to the concerned person. Repealed by the Judicial Administration Reform (Fourth Amendment) Act, 2043.(2) Added by the Sixth Amendment.14k. May Lodge Complaint: (1) Any person who comes to know that a person or family having land exceeding the maximum limit that may be held in the capacity of landowner under this Act has submitted a statement under Section 13 by concealing land may lodge a complaint with the prescribed authority. (2) If, upon inquiry, the complaint received under Sub-section (1) is found to be reasonable, such land shall be confiscated by order of the prescribed authority and shall come

under the ownership of the Government of Nepal. (3) An amount equivalent to 25 percent of the value of the land confiscated under Sub-section (2), calculated at the prescribed rate, shall be given as a reward by the prescribed authority to the person making such complaint. 15.

Acquisition of Land Exceeding Maximum Limit: After the deadline for filing complaints against the statement published under Sub-section (1) of Section 14 has expired and no complaints are outstanding, the prescribed authority shall acquire, according to the published statement, and if a complaint has been filed, according to the final decision on the complaint, land exceeding the maximum ceiling limit specified in Section 7 for the concerned landowners in the area where this Chapter applies, as prescribed. After such acquisition, the rights and powers of the concerned landowner over that land shall be deemed to have automatically terminated. Provided - (a) If a landowner, who has land exceeding the maximum limit under Section 7 in one or more areas, has submitted a statement under Section 13 specifying the land they wish to retain, the land within the maximum limit under Section 7 chosen by them in that statement shall not be acquired. Added by the Sixth Amendment.(a1) If the land in excess of the maximum ceiling is tenanted, the land equivalent to the tenant's right shall be separated after adjusting wet and dry land, and the remaining land shall come under the ownership of the Government of Nepal. Added by the Eighth Amendment.(a2) While separating the tenant's right under Clause (a1), if it is proven from other evidence that the tenant has voluntarily not plowed or cultivated that land, the tenant's entry shall be removed and such land shall be recorded in the name of the Government of Nepal. (b) Until the land so acquired is transferred to the person entitled to buy and distribute it under Chapter 6, the previous landowner shall be permitted to use and cultivate it, subject to paying land revenue to the Government of Nepal as before. 16. Procedure When Land Exceeding Ceiling is Acquired: (1) If, by way of partition, inheritance, river accretion, or abandonment, land accrues to any person or their family in the capacity of landowner, and if, when added to any land they already have, the total exceeds the maximum limit under Section 7, such person must submit a prescribed statement to the prescribed authority within 35 days of such acquisition.

Provided that, if

(c) If a tenant abandons or disappears from the land, or if the tenancy right is terminated due to non-payment of rent as prescribed, the landlord shall give written notice thereof to the prescribed officer within 25 days, and the prescribed officer shall, after inquiry, record and certify in the register book the fact of the termination of the tenancy right in accordance with clause (b) of sub-section (4) of section 25 amended by the Eighth Amendment..

(2) If the land cultivated by the tenant increases due to alluvion or the river shifting, the tenant shall acquire the right to such increase, subject to the other provisions of this Act.

(3) The tenant may construct temporary or permanent structures such as embankments, ridges, fences, walls, drains, bridges, canals, wells, and also huts (Kuruwa Chapro) necessary for the cultivation of the land concerned. Provided that, without the consent of the landlord, houses, etc., not necessary for cultivation shall not be constructed.

(4) If the tenancy right of a tenant over any land he has been cultivating is to be terminated under this Act, the tenant may, within 30 days of the termination of his right over that land, remove all property other than immovable property he has added to that land. Provided that, amended by the Nepal Acts Amendment Act, 2072. if the landlord pays the tenant the amount fixed by the Rural Municipality or Municipality for permanent improvements, the tenant shall not be entitled to remove any object constructed for the permanent improvement of the land from which the right is terminated.

(5) The tenant shall not surrender the land in a condition worse than the condition in which he received it for cultivation, except for reasonable wear and tear, force majeure, or changes due to causes beyond the tenant's capacity.

(6) Before the division of the produce or crop between the landlord and the tenant, the tenant may deduct the seed required for the following year. The landlord shall not be entitled to charge interest from the tenant on the seed so deducted.

(7) When a landlord sells, donates, or partitions any of his land, the deed relating thereto shall mention the name, surname, and residence of the tenant, and the terms and conditions agreed with the tenant, and if there is a deed of such terms and conditions, a certified copy thereof shall also be attached to such deed.

(8) If any land is sold, donated, or partitioned, within 15 days of the deed relating thereto, the landlord shall give notice thereof to the tenant and the amended by the Nepal Acts Amendment Act, 2072.

Rural Municipality or Municipality, specifying the name, surname, and residence of the person to whom the land has been sold, donated, or partitioned. Added by the Second Amendment.26A. Tenancy right not to be bought or sold: Notwithstanding anything written in the prevailing Nepal law, a tenancy right shall not be purchased, nor shall it be relinquished by way of donation or otherwise. It shall not be sold by auction in government or non-government dues or penalties. Provided that, if before the commencement of this Act, a tenant, with the consent of the landlord or from time immemorial, has built a permanent house, the land of such homestead may be sold or the right otherwise relinquished, and the provisions relating to the maximum ceiling under section 8 shall not apply to such land. Added by the Fourth Amendment.26B. Power to partition land between landlord and tenant: The prescribed officer may, subject to sections 26C, 26D, 26E and 26F, amended by the Fifth Amendment. partition the land under tenancy between the landlord and the tenant. Added by the Fourth Amendment.26C. Joint application by landlord and tenant: (1) If both the landlord and the tenant of land under tenancy wish, by mutual consent, to partition the land under tenancy and take their respective shares, or if they wish to relinquish the tenancy record by surrendering the entire land to either the landlord or the tenant upon receiving a sum equivalent to the prevailing market value of the land they have agreed to take, they shall submit a joint application to the prescribed officer, containing full details thereof, along with the evidence in their possession.

(2) Upon receiving an application under sub-section (1), the prescribed officer shall examine the evidence attached with the application. If he finds it reasonable to partition the land as per the applicant's request or to vest the entire land in the name of either the landlord or the tenant, he may accordingly partition the land or vest the entire land in the name of one person and cancel the tenancy record. Amended by the Eighth Amendment.26D.

Partition of land between landowner and tenant to be made: (1) If, for a joint application under sub-section (1) of section 26C, both the landowner and the tenant are unable to agree with each other and either the landowner or the tenant files an application, the prescribed officer shall, after summoning the landowner or the tenant and hearing necessary evidence if required, partition the land, adjusting for good and bad quality, so that the area or valuation of the land to be partitioned is equal halves, and cancel the tenancy record. (2) When partitioning land between the tenant and the landowner under sub-section (1), in the case of private Guthi, only the landowner's certificate shall mention the private Guthi. Amended by the Eighth Amendment.26D1. Application to be filed: For the purposes of sections 26C and 26D, an application must be filed within the period specified by amended by the Eighth Amendment. the Government of Nepal by publishing a notice in the Nepal Gazette. Amended by the Eighth Amendment.26D2. Partition of land to be

made: If within the period under section 26D1, no application for partition of land is filed by either the landlord or the tenant, the prescribed officer shall, after examining Form No. 7 and available evidence, partition the land under tenancy, subject to the provisions mentioned in other sections of this Act. Added by the Sixth Amendment.26D3. Proceedings to be concluded: The proceedings for partitioning land under tenancy between the landlord and the tenant under this Act shall be concluded by the prescribed officer within the period specified by amended by the Eighth Amendment. the Government of Nepal by publishing a notice in the Nepal Gazette. Added by the Sixth Amendment.26D4. Team may be deployed: (1) For the purpose of swiftly partitioning land between the landowner and the tenant under section 26D2, the prescribed officer shall prepare a concrete action plan and carry out the work, and for the purpose of completing that work, he may deploy a team as necessary to any place within his district to carry out the work. (2) The procedure other than that written in this Act to be adopted by the team deployed under sub-section (1) regarding the partition of land shall be as prescribed. Added by the Fourth Amendment.26E.

Power to vest land right in the name of only one of the landlord or tenant: (1) Notwithstanding anything written elsewhere in this Act, the prescribed officer may decide to vest the entire land under tenancy in the name of either the landlord or the tenant in the following circumstances:- (a) If either the landlord or the tenant agrees to surrender the entire land falling to his share upon receiving from the other party an amount equal to the prevailing market value of the land, amended by the Nepal Acts Amendment Act, 2055. then in the name of the person who agrees to take such land. (b) If, upon partitioning the land between the landlord and the tenant, the area of land in the urban or peri-urban area is less than the minimum area prescribed for building a house, then giving priority to the landlord or the tenant who has less land or no land for building a house in that place, in his name. Explanation: For the purpose of this clause, if a dispute arises as to whether any land belongs to an "urban area" or "peri-urban area", the decision on that matter shall be made by the Price Determination Committee under section 26J. (c) If the tenant has built a house on the land under tenancy, then, when partitioning the land between the landowner and the tenant, even if the landowner gets less land, the house, the land occupied by that house, and the land necessary for access to that house shall be in the name of the tenant. (2) If, under clause (b) of sub-section (1), the entire land is to be vested in the name of either the landlord or the tenant, or if under clause (c) land is vested in the name of the tenant and consequently the landowner gets less land, the landlord or the tenant whose land is not so vested or who gets less land shall be paid an amount equal to the prevailing market value of the land he would have received by the other party. Added by the Eighth Amendment.(3) If, under clause (a1) of the proviso to section 15, land equivalent to the tenant's right is set aside in the tenant's name, and the remaining land coming under the ownership of the Government of Nepal cannot technically be subdivided, after depositing the amount determined by the committee under section 26J into the revenue account, such land shall be vested exclusively in the name of the tenant. Added by the Fourth Amendment.26F.

No appeal to lie: Notwithstanding anything written elsewhere in this Act, amended by the Fifth Amendment. no appeal shall lie to any court against a decision made by the prescribed officer under sections 26B, 26C, 26D, 26D2 and 26E. Added by the Fourth Amendment.26G. To be sent for entry, cancellation and record reconciliation: (1) After the prescribed officer partitions the land between the landlord and the tenant under this Act or decides to vest the right to such land in the name of only one of them, he shall send the full details thereof to the concerned office for entry, cancellation and record reconciliation. (2) Upon receiving the details under sub-section (1), such office shall, after making necessary entries and cancellations, give information thereof to the officer who sent the details. (3) Notwithstanding anything written in the prevailing law, no registration fee or any other fee leviable under the prevailing law shall be charged when performing entry, cancellation or any other related work under sub-section (2). Added by the Fourth Amendment.26H.

Formation of Price Determination Committee: (1) For the determination of the price of land under section 26E, there shall be one Price Determination Committee in each district as follows:- (a) Head of the office - Coordinator (b) Chief Administrative Officer of the local level where the land is situated, or an officer-level representative designated by him - Member (c) Officer-level employee of the District Administration Office - Member (d) Representative of the Inland Revenue Office or the Treasury and Accounts Controller Office - Member (e) Chief of the Survey Office - Member (f) Senior employee of the office - Member-Secretary (2) The procedure relating to the meetings of the committee under sub-section (1) shall be determined by the committee itself. Added by the Fourth Amendment.26I. Government of Nepal may arrange funds: After the partition of land between the landlord and the tenant under this Act, the Government of Nepal may, by itself or through any financial institution, arrange the necessary funds for such persons to encourage the landlord and the tenant to purchase the land falling to each other's share. Added by the Eighth Amendment.26J. Joint land ownership to be established: If, while partitioning land between the landowner and the tenant, the office finds that subdivision according to the prescribed standards cannot be made due to technical reasons, a joint land ownership certificate shall be issued in the names of the tenant and the landowner for that land. 27. 28. Added by the First Amendment and amended by the Second Amendment.29.

Termination of tenancy right: (1) If, except in case of destruction of crops due to force majeure or failure of production, the landlord complains that the tenant has not paid the rent, the prescribed officer may order the eviction of such tenant. (2) If the landlord files an application upon the occurrence of any of the following circumstances, the District Court may issue an order evicting the tenant from the land:- (a) If the value or yield of the land has decreased due to any deliberate act causing diminution in the value or yield of the land, or due to failure to provide reasonable care; or (b) If the land has not been cultivated for 1 year or has been neglected in cultivation, except in circumstances beyond his control. (3) In the circumstances under sub-section (1) or clause (b) of sub-section (2), the landlord may also be awarded the rent from the tenant. Added by the First Amendment and amended by the Second Amendment.29A. Limitation period for eviction of tenant: If a tenant is to be evicted under section 29, the application must be filed within the following periods. No application shall lie after the expiry of such period:- (a) In the case mentioned in clause (a) of sub-section (2) of section 29, within 35 days from the date of the act or thing specified in that clause. (b) In the case mentioned in clause (b) of sub-section (2) of section 29, within 35 days after the expiry of one year from the date of the act or thing written in that clause. (c) In the case mentioned in sub-section (1) of section 29, within 30 days from the date of expiry of the period specified in sub-section (2) of section 36. 30. Preparation of record of land, landlord and tenant: (1) The provisions for taking a record of land, landlord and tenant, and issuing certificates of tenancy right to tenants shall be as prescribed. Provided that, all work and actions done by the Government of Nepal before the commencement of this section relating to taking such record and issuing certificates of tenant's right shall be deemed to have been done under this section. (2) For the work under sub-section (1), the powers that the Government of Nepal or an officer authorized by the Government of Nepal may exercise and the procedure to be adopted shall, in matters written in the rules made under this Act, be according thereto, and in matters not written, shall be similar to those of the prescribed officer under the Land (Survey and Measurement) Act, 2019. 31.

Removed by the Eighth Amendment Added by the First Amendment and amended by the Second Amendment.31A. Disputes relating to acquisition of tenancy right or title thereof: (1) Any dispute relating to the acquisition of a tenancy right under this Chapter or regarding the title to a tenancy right that arises shall be decided by the prescribed officer. (2) Pursuant to the decision made by the prescribed officer under sub-section (1), the concerned person shall be given a period of up to 15 days to allow the tenant so determined to enjoy the land. 32. Penalties: (1) If a landlord or any person acting on his behalf:- (a) Forcibly

removes or evicts a tenant from the land in his possession and enjoyment in any manner other than by an order of a court or amended by the Nepal Acts Amendment Act, 2072. the Rural Municipality or Municipality under this Chapter; or (b) Removes a tenant from the land in his possession and enjoyment by fraud, deception, or other dishonest means, such person shall, amended by the Second Amendment. by order of the prescribed officer, amended by the Eighth Amendment. be liable to a fine of up to Rs. Ten Thousand. Removed by the Second Amendment. . (2) If the court finds the landlord guilty under sub-section (1), it shall also issue the following directions in the name of the landlord:- (a) To give back possession and enjoyment of the land to the tenant; and (b) To pay compensation to the tenant for being removed or evicted by the landlord through illegal means, according to the share of the produce (Mohiboti) that the tenant would have received if his possession and enjoyment of the land had continued. (3) If any person violates any provision written in sub-section (5), (7) or (8) of section 26, he shall, amended by the Second Amendment. by order of the prescribed officer, amended by the Eighth Amendment. be liable to a fine of up to Rs. Five Thousand, and the court may also order the tenant violating sub-section (5) to pay compensation to the landlord as deemed reasonable. (4) If any person obstructs or opposes the work of preparing records under section 30, or fails to perform any duty required to be performed under this Act or the rules or orders made under this Act, he shall, amended by the Second Amendment. by order of the prescribed officer, amended by the Eighth Amendment. be liable to a fine of Rs. Ten Thousand to Twenty-Five Thousand. Removed by the Second Amendment. .

Added by the Second Amendment.(5) A landlord who fails to give notice under clauses (b) and (c) of the proviso to sub-section (1) of section 26 may be fined by the prescribed officer from Rs. Five Thousand to Twenty-Five Thousand, and a tenant violating section 26A may be fined up to Rs. Three Thousand, and such purchase or sale shall be automatically void. Chapter 8 Provisions regarding Rent 33. Provision regarding rent: The landlord shall not take a share of the produce or fix a rent exceeding half of the amended by the Second Amendment. main annual produce of the land from the tenant. Provided that- (a) In the Kathmandu Valley, a landlord having land shall not fix a rent exceeding the following rates of the main annual produce of the land from the tenant: Irrigated Land (Khet) Non-irrigated Land (Pakho) Per 1 Ropani of Avval grade 1.3 1.1 Per 1 Ropani of Doyam grade 1.6 1.2 Per 1 Ropani of Sim grade 1.3 1.3 Per 1 Ropani of Chahar grade 8.5 1.7 (b) Where at the commencement of this section, the share of the produce or the rent was being taken or fixed at a lower rate, that lower rate shall continue. The landlord shall not increase that lower rate and take a share of the produce or fix a rent from the tenant. Added by the Second Amendment.(c) The Government of Nepal may, for any land or land of a specified area, determine the average main annual produce based on the type of land and yield, and on the basis of such average, fix a rent of 50 percent of the main annual produce that the tenant is required to pay to the landlord under this section. Once the rent is so fixed, the rent shall be taken and given accordingly every year. Added by the First Amendment.Explanation: For the purposes of this section, the rent to be taken or given based on the type of land shall be as written in the tenancy right certificate or the temporary pass (Jotaha) issued under this Act and the rules made under this Act, and except where transactions have already taken place, such rent shall be taken and given from the date of commencement of the original Act. Repealed by the Fourth Amendment.34. 35.

Regarding remission of rent: If in any year the tenant is unable to sow the crop or the harvest fails due to natural calamity or adversity, he shall give notice thereof as soon as possible to the landlord or the person collecting the rent on his behalf, and the landlord shall remit such amount of rent as appears necessary, or take a share of the produce in proportion to the yield. Amended by the Second Amendment.36. Time for payment of rent and other related provisions: (1) The rent to be paid by the tenant shall be paid to the landlord within the prescribed time each year. Provided that, if there is a condition to divide the harvested

crop on the threshing floor (Thala) or at the harvest site (Kharihan) itself, the tenant shall not harvest the crop without the landlord or his representative being present. If the landlord or his representative does not come despite prior notice, amended by the Nepal Acts Amendment Act, 2072. the tenant may submit an application to the concerned amended by the Nepal Acts Amendment Act, 2072. Rural Municipality or Municipality, and with at least one member of that amended by the Nepal Acts Amendment Act, 2072. Rural Municipality or Municipality and two witnesses (Sandhiyars) present, have a note (Nissa) made, set aside the landlord's share, and keep it in his own custody, and the share so set aside shall be accepted by the landlord. (2) When paying rent under sub-section (1), if the landlord or his representative refuses to accept the rent as mentioned in the agreement, the tenant may, within 30 days after the expiry of the time for paying rent, file an application and deposit the rent payable, converted into cash at the market rate, amended by the Nepal Acts Amendment Act, 2072. in the Rural Municipality or Municipality, or the District Revenue Office, or the Land Administration Office. Provided that, if the deposit is found to be less than 90 percent of the rent payable, such deposit shall not be deemed as payment of rent by the tenant under this sub-section, and if it is found that the deposit was made by varying the price or amount or by presenting false details, the 2 percent fee charged to the landlord under sub-section (5) shall be recovered from the tenant. (3) If a tenant comes to deposit under sub-section (2), the amended by the Nepal Acts Amendment Act, 2072.

Rural Municipality or Municipality, or Revenue Office, or Land Administration Office where the deposit is made shall credit the amount brought for deposit as revenue and, within 7 days of receiving the money, issue a notice in the name of the landlord.

(4) After receiving the notice under sub-section (3), if there is any reason why the rent should not be accepted, the landlord may, within 15 days excluding the time for travel, go himself or send a representative to the amended by the Nepal Acts Amendment Act, 2072. Rural Municipality or Municipality, or Revenue Office, or Land Administration Office where the deposit was made and lodge a complaint. If no complaint is lodged within that period, the landlord shall be deemed to have agreed to accept the deposited rent.

(5) If within one year from the date of receiving information of the rent deposit under sub-section (2) or from the date of final decision in case of dispute, the landlord or his representative submits an application claiming the deposited amount, the amended by the Nepal Acts Amendment Act, 2072. Rural Municipality or Municipality, or Revenue Office, or Land Administration Office where the deposit was made shall, after deducting 2 percent as fee, pay the amount to him. If no such application is submitted within that period, the deposit shall automatically lapse to the consolidated fund of the Government of Nepal after that period expires.

(6) The amount of fee received at the rate of 2 percent of the deposited amount under sub-sections (2) and (5) shall be credited to the fund of the amended by the Nepal Acts Amendment Act, 2072. Rural Municipality or Municipality and may be spent by it. Amended by the Eighth Amendment.(7) The landowner himself/herself shall take information and collect the amount deposited by the tenant in the office or local level as rent within two years, except when a case is pending in court or other body regarding it, and if not collected within that period, the office or concerned local level shall write it off to the revenue account within the same fiscal year. Added by the First Amendment.36A. Limitation for claiming rent: The landlord must file a suit for recovery of rent from the tenant within 90 days from the date of expiry of the time for payment of rent or within 35 days from the date this section comes into force, whichever is later. No suit for recovery of rent shall lie after the expiry of that period. 37.

Not to exact other labor or money: The landlord shall not, without paying fair wages, exact from the tenant

any kind of labor such as forced labor (Beth Begari), or take any kind of money other than the rent for giving the land for cultivation. 38. Penalties: (1) If any landlord is found to have collected any money or item (Kalam) from the tenant in violation of section 33 or 35 removed by the First Amendment. , the amended by the Second Amendment. prescribed officer may order the amount so collected to be paid to the tenant and also fine the landlord according to the amount (Bigo). (2) If any landlord fails to give a receipt to the tenant in violation of section 34, the amended by the First Amendment. prescribed officer, court, or amended by the Nepal Acts Amendment Act, 2072. Rural Municipality or Municipality may fine him up to Rs. 500.00 (Five Hundred). (3) If any landlord is found to have exacted labor from the tenant in violation of section 37, the amended by the Nepal Acts Amendment Act, 2072. Rural Municipality or Municipality shall order the landlord to pay double the wages payable at the local rate to the tenant. Added by the First Amendment.(3A) If any landlord is found to have collected any money or item from the tenant in violation of section 37, the prescribed officer, court, or amended by the Nepal Acts Amendment Act, 2072. Rural Municipality or Municipality may order the amount so collected to be paid to the tenant and also fine the landlord according to the amount. (4) Except as written in the sub-sections above, any person violating any other provisions of this Chapter may be fined up to Rs. 100.00 (One Hundred) by the amended by the First Amendment. prescribed officer, court, or amended by the Nepal Acts Amendment Act, 2072. Rural Municipality or Municipality. 39. Special provision regarding old tenancy cases: Notwithstanding anything written in the prevailing Nepal law, in cases filed in various courts by the landlord for eviction of the tenant or cultivator cultivating his land due to arrears of crop share, which remained pending up to the date before the commencement of this section, the court shall not order eviction of the tenant or cultivator due to arrears of crop share. If arrears are established, the arrears shall be paid to the landlord by the concerned tenant or cultivator. For the purpose of inquiry whether such arrears exist or not, the concerned court may, if deemed necessary, conduct a spot inspection (Sarjamine).

52B. To provide land to landless squatters (Sukumbasi): (1) Notwithstanding anything written in the prevailing law, the Government of Nepal shall, subject to sub-section (4), provide land once to landless squatters at the place they have been occupying and cultivating, or at any other government land deemed suitable by the Government of Nepal, not exceeding the prescribed area limit.

(2) If a landless squatter is found to have occupied and cultivated an area exceeding the prescribed area, the land exceeding that prescribed area shall, subject to this section, be provided to other landless squatters or used by the Government of Nepal for other purposes.

(3) Land provided to landless squatters under this section shall not be transferred to anyone by any process other than partition (Anshabanda) and in case of intestacy (Aputali) for ten years, and even after that period, such land shall not be transferred in any manner that would render it ownerless.

(4) Notwithstanding anything written elsewhere in this section, the following land shall not be provided when providing land under this section:-

- (a) Land within areas of religious, cultural, or strategic importance,
- (b) Land deemed necessary to protect from the perspective of natural disaster, disaster management, and environmental conservation,
- (c) Public land, land on the banks of rivers, streams, or canals, land settled in hazardous locations, land in national parks or protected areas, land covered by trees and vegetation currently forest land, and land within road boundaries,
- (d) Land required for the use of the Government of Nepal, Provincial Government, or Local Level, and

(e) Land in other places as prescribed.

(5) If any person or his family has been provided with government land or housing in any manner by the Government of Nepal, such person or family shall not be provided with land under this section.

(6) For the purpose of providing land under this section, the Government of Nepal may form a commission by publishing a notice in the Nepal Gazette to identify landless squatters and prepare a record, identify land, conduct field studies and prepare a record of land, collect evidence and provide land to them.

(7) The chairperson and members of the commission formed under sub-section (6), and the functions, duties, powers, and procedures of the commission shall be as prescribed at the time of formation.

(8) The commission formed under sub-section (6) shall also resolve problems seen in matters including the ownership or registration records or map certification of lands distributed by various commissions or task forces formed by decision of the Government of Nepal before the commencement of this Act.

(9) The Government of Nepal may form committees at the district level as necessary to assist, coordinate, and facilitate the work and proceedings of the commission under sub-section (6).

(10) Notwithstanding anything written elsewhere in this section, in urban areas including the Kathmandu Valley, the Government of Nepal may, as prescribed and as necessary, provide housing to landless squatters, arrange community settlements, or provide land through land development.

(11) Other provisions relating to providing land under this section shall be as prescribed.

Provided that, the term shall not include a family member who has partitioned (Anshabanda) according to law and lives separately pursuing his own profession or business. Added by the Eighth Amendment.52C. To manage haphazard settlers: (1) Notwithstanding anything written in the prevailing law, the Government of Nepal may, once, provide land to haphazard settlers who have been occupying and cultivating land for at least ten years prior to the commencement of this section on fallow (Ailani) or other government land, or land recorded as forest area in the records but converted to habitation (Abadi), at the place they have been occupying and cultivating, not exceeding the prescribed area limit.

(2) Notwithstanding anything written in sub-section (1), if haphazard settlers have settled on land mentioned in sub-section (4) of section 52B, such land shall not be provided to them.

(3) When providing land to haphazard settlers under sub-section (1), the ownership of land may be provided upon classification as prescribed based on the economic condition of the settler, the settlement situation, the nature, area, valuation of the land, the duration of occupation and cultivation, and whether land is held elsewhere, and upon payment of a fee as prescribed according to such classification.

(4) If a haphazard settler is found to have occupied and cultivated an area exceeding the prescribed area, the land exceeding that prescribed area may be used by the Government of Nepal for other purposes.

(5) When providing land for haphazard settlers under this section, land may be provided to haphazard settlers who have settled during the process of land exchange (Sattabharna) from the government land they have been using, not exceeding the area mentioned in the documentary evidence provided by the concerned body at the time of exchange.

(6) Land provided under this section shall not be transferred to any person by any process other than partition (Anshabanda) and in case of intestacy (Aputali) for ten years.

(7) If any haphazard settler or his family has been provided with government land or housing in any manner by the Government of Nepal, such person or family shall not be provided with land under this section.

(8) For the purpose of providing land under this section, the work of identifying and preparing a record of haphazard settlers, conducting field studies, collecting evidence, and providing land shall be done by the commission under sub-section (6) of section 52B.

(9) Other provisions relating to providing land under this section shall be as prescribed.

Explanation: For the purpose of this section,-

(a) "Haphazard settler" means a person who has been living by building houses and huts, occupying and cultivating government fallow (Ailani), barren (Parti) land, or land recorded as forest in government records for a long time, classified according to sub-section (3), and the term also includes the dependent family members of such person.

(b) "Ailani land" means land that may or may not be registered in the name of the government, land that has been occupied and cultivated for a long time even if recorded as forest in government records, or land that was allowed to be occupied and cultivated at the relevant time. Added by the Eighth Amendment.52D.

Penalties: If any person commits any of the following acts with the intention of obtaining land while providing land under section 52B or managing haphazard settlers under section 52C, the prescribed officer may impose the following penalties:-

(a) If the person has not provided his details or has submitted false details or records, but has not yet obtained land and structure, a fine of up to twenty-five thousand rupees.

(b) If it is proved that the person has obtained land or structure by not providing his details or by submitting false details or records, confiscation of such land or structure and a fine of up to one hundred thousand rupees or imprisonment for up to one year or both.

(c) A fine of up to twenty-five thousand rupees for anyone who writes false details and conducts a spot inspection (Sarjamin) or makes a false recommendation. 52E. To coordinate: When providing land under section 52B and managing haphazard settlers under section 52C, the Government of Nepal shall coordinate with the Provincial Government and the Local Level. 52F. To resolve problems relating to land ownership and possession: (1) For the purpose of investigating and making necessary recommendations to resolve problems relating to the ownership and release of attachments of lands that have been attached (Rokka) following suggestions given by a commission formed by decision of the Government of Nepal prior to the commencement of this section regarding the protection of government and public land, the Ministry may form a committee or task force by publishing a notice in the Nepal Gazette.

(2) Based on the recommendation given by the committee or task force under sub-section (1), the Ministry shall finalize the matter relating to the ownership and attachment of government and public land.

(3) Notwithstanding anything written in sub-section (1), if the Government of Nepal deems appropriate, the works under sub-section (1) may be carried out through the concerned body of the Government of Nepal.

(4) Provisions including the formation process, functions, duties,

3.

Commencement in the districts of (1) Morang, (2) Sunsari, (3) Siraha, (4) Dhanusha, and (5) Mahottari by the notice dated 2027.5.29.

(3) Agriculture (New Arrangements) Act, 2019. 4. Commencement in the districts of (1) Chitwan, (2) Rupandehi, (3) Kapilvastu, (4) Saptari, and (5) Dang by the notice dated 2029.5.20. 5. Commencement in the districts of (1) Ilam, (2) Udayapur, (3) Sindhuli, and (4) Surkhet by the notice dated 2031.4.25. 6. Notice of fixation of crop-share rates in 8 districts from the crop year 2031-032 by the notice dated 2030.6.29. 7. Commencement of Chapter 2 of the Land Related Act, 2021 in the districts of Panchthar, Dhankuta, Ramechhap, Tanahun, and Mustang from the date 2035.4.1 by the notice dated 2035.4.2. 8. Commencement of Chapter 2 of the Land Related Act, 2021 in the districts of Dadeldhura, Tehrathum, Kavrepalanchok, Dhading, and Myagdi from the date 2036.1.1 by the notice dated 2035.11.28. 9. Commencement of Chapter 2 of the Land Related Act in the districts of Makwanpur, Nuwakot, and Kaski by the notice dated 2036.8.15. 10. Commencement of Chapter 2 of the Land Related Act in Rasuwa district by the notice dated 2038.5.1. 11. Immediate commencement of Chapter 2 of the Land Related Act, 2021 in the districts of Salyan, Baglung, and Bhojpur by the notice dated 2040.4.1. 12. Immediate commencement of Chapter 2 of the Land Related Act, 2021 in the districts of Gorkha, Gulmi, and Syangja by the notice dated 2041.4.1. 13. Commencement of Section 3 of Chapter 2 of the Land Related Act, 2021 in the districts of Parbat, Arghakhanchi, and Darchula from the date 2043.4.1 by the notice dated 2043.4.6. 14. Commencement of Section 3 of Chapter 2 of the Land Related Act, 2021 in the districts of Lamjung and Khotang from Shrawan 1, 2045 by the notice dated 2045.2.3. 15. Specified that Chapter 2 of the Land Related Act, 2021 shall commence in the districts of Bajura and Dailekh from the same date by the notice dated 2051.4.1. 16. Specified that Chapter 2 of the Land Related Act, 2021 shall commence in Sankhuwasabha district from the same date by the notice dated 2052.5.1. 17. Specified that Chapter 2 of the Land Related Act, 2021 shall commence in Solukhumbu district from the same date by the notice dated 2053.7.1.

(b) Transformations: - (1) Words transformed by the Land Related (Fourth Amendment) Act, 2053: -

(a) "Panchayat" or "Local Panchayat" substituted by "Village Development Committee" or "Municipality".

(b) "Town Panchayat" substituted by "Municipality".

(2) Words transformed by the Some Nepal Laws Amendment Act, 2063: -

"His Majesty's Government" substituted by "Nepal Government".